

THE BOMBAY PUBLIC SECURITY MEASURES ACT, 1947

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Union of India - Act

THE BOMBAY PUBLIC SECURITY MEASURES ACT, 1947

UNION OF INDIA

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THE BOMBAY PUBLIC SECURITY MEASURES ACT, 1947

Act 06 of 1947

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[Amended by The Bombay Public Security Measures (Delhi Amendment) Act, 1948 (Act 52 of 1948) on 8 September 1948

]

An Act to consolidate and amend the law relating to public safety, maintenance of public order and the preservation of peace and tranquility in the Province of Bombay.

WHEREAS it is expedient to consolidate and amend the law relating to public safety, maintenance of public order and the preservation of peace and tranquility in the Province of Bombay; It is hereby enacted as follows:--

1.

Short title, extent and duration

(1)

This Act may be called the Bombay Public Security Measures Act, 1947.

(2)

It extends to the whole of the Province of Bombay.

(3)

It shall remain in force for a period of [2][three] years.

(4)

The Provincial Government may by notification published in the Official Gazette direct that all or any of its provisions shall come into force in the whole of the Province of Bombay or in any area in the Province of Bombay on such date as may be specified in the notification and may by like notification direct that the same shall cease to be in force on such date as may be specified in the notification.

2.

Power to make orders detaining or restricting movements or actions of persons

[3][(A1) Any police officer not below the rank of the Superintendent of Police in Greater Bombay or the Deputy Superintendent of Police elsewhere, authorized in this behalf by the Provincial Government by general or special order may, if he is satisfied that any person is acting or is likely to act in a manner prejudicial to the public safety, the maintenance of public order or the tranquility of the Province or any part thereof, arrest or cause to be arrested such person without warrant and direct that he shall be committed to such custody as such officer may deem fit for a period not exceeding fifteen days; and such police officer shall forthwith report the fact of such arrest to the Provincial Government.]

(1)

The Provincial Government may, if it is satisfied that any person [4][including a person arrested under sub-section (A1), was acting, is acting or is likely to act] in a manner prejudicial to the public safety, the maintenance of public order, or the tranquility of the Province or any part thereof, make an order?

(a)

directing that he be detained;

(b)

directing that, except in so far as he may be permitted by the provisions of the order, or by such authority or person as may be specified therein, he shall not be in any such area or place in the Province as may be specified in the order;

(c)

requiring him to reside or remain in such place or within such area in the Province as may be specified in the order and, if he is not already there, to proceed to that place or area within such time as may be specified in the order;

(d)

requiring him to notify his movements or to report himself or to do both in such manner, at such times and to such authority or person, as may be specified in the order;

(e)

imposing upon him such restrictions as may be specified in the order, in respect of his employment or business or association or communication with other persons, and in respect of his activities in relation to the dissemination of news or propagation of opinion;

(f)

prohibiting or restricting the possession or use by him of any such article or articles as may be specified in the order.

(2)

An order made under sub-section (1) may require the person in respect of whom it is made to enter into a bond, with or without sureties, for the due observance of the restrictions or conditions specified in the order.

[5][(2A) When any person is detained under an order made under clause (a) of sub-section (1), the Provincial Government may, notwithstanding anything contained in sub-section (1), in lieu of such order make any such order as is described in clause (b), (c) or (d) of the said sub-section.]

(3)

If any person is found in any area or place in contravention of an order made under the provisions of this section, or fails to leave any area or place in accordance with the requirements of such order, he may, without prejudice to the provisions of sub-section (6), be removed by any police officer from such area or place.

(4)

So long as there is in force in respect of any person an order under clause (a) of sub-section (1), he shall be liable to be

removed to, and detained in, such place and under such conditions, including conditions as to maintenance, discipline and punishment for breaches of discipline, as the Provincial Government may from time to time by general or special order specify.

(5)

If the Commissioner of Police, Bombay, or the District Magistrate, or the Additional District Magistrate has reason to believe that a person in respect of whom an order has been made under clause (a) of sub-section (1) has absconded or is concealing himself or is otherwise delaying or frustrating the execution of the order, he may?

(a)

make a report in writing of the fact to a Presidency Magistrate or a Magistrate of the first class, as the case may be, having jurisdiction in the place where the said person ordinarily resides; and thereupon the provisions of sections 87, 88 and 89 of the Code of Criminal Procedure, 1898 (V of 1898), hereinafter referred to as the Code, shall apply in respect of the said person and his property as if the order directing that he be detained were a warrant issued by the Magistrate, or

(b)

by a direction notified in the Official Gazette, require the said person to appear before him at such place, and within such period, as may be specified in the direction; and if the said person fails to comply with such direction he shall, unless he proves that it was not possible for him to comply with it and that he had within the period specified in it, informed the Commissioner of Police, or the District Magistrate, or the Additional District Magistrate, as the case may be, of his whereabouts and of the reasons which rendered compliance with it impossible be punishable, on conviction, with imprisonment for a term which may extend to one year, or with fine, or with both.

(6)

If any person contravenes any order made under this section he shall, on conviction, be punishable with imprisonment for a term which may extend to one year or with fine, or with both, and if such person has entered into a bond in pursuance of the provisions of sub-section (2), his bond shall be forfeited, and any person bound thereby shall pay the penalty thereof or show cause to the satisfaction of the Court why such penalty should not be paid.

3.

Grounds of order to be disclosed to person affected

Where an order is made in respect of any person under clause (a) of subsection (1) of section 2, the Provincial Government [6][may, upon application by the person affected by the order, communicate to him] the grounds on which the order has been made, without disclosing facts which it considers against the public interest to disclose, and such [7]** particulars as are in its opinion sufficient to enable him to make a representation to the Provincial Government against the order and [8][afford him the earliest opportunity of making such representation].

4.

Orders on representation

On receipt of a representation under section 3, the Provincial Government may either annul or confirm the order or modify it or make any other order which it could have made under sub-section (1) of section 2.

Section 5 - Control of essential services

(1)

If the Provincial Government is of opinion that any employment under the Provincial Government or any other employment or class of employment connected with any matter specified in List II or List III in the Seventh Schedule to the Government of India Act, 1935 (26 Geo. 5, Ch. 2), is essential for purposes of public safety, the maintenance of public order or maintaining supplies or services essential to the life of the community, it may notify such employment or class of employments in the Official Gazette accordingly and may direct, by general or special order, that any person or persons engaged in such employment or class of employments shall not depart out of such area or areas as may be specified in such order.

(2)

An order made under sub-section (1) shall be published in such manner as the Provincial Government considers best calculated to bring it to the notice of the persons affected by the order.

(3)

Where any employment or class of employments has been notified under sub-section (1),

(i)

every person engaged in such, employment,

(a)

who disobeys any lawful order given to him in the course of such employment, or

(b)

who without justifiable excuse abandons such employment or absents himself from work, or

(c)

who departs from any area specified in an order under sub-section (1) without the permission of the Provincial Government, and

(ii)

every employer in such employment who, without justifiable excuse?

(a)

discontinues the employment of any person engaged in such employment, or

(b)

causes the discontinuance of the employment of any person engaged in such employment by closing an establishment in which he is engaged, shall, on conviction, be punishable with imprisonment for a term which may extend to one year or with fine or with both.

Explanation 1.--Abandonment of employment or absence from duty by any person merely for fear of molestation, intimidation or assault by any person or class of persons shall not constitute a justifiable excuse within the meaning of clause (i) (b).

Explanation 2.--A person abandons his employment within the meaning of clause (i) (b), who, notwithstanding that it is an express or implied term of his contract of employment that he may terminate his employment on giving notice to his employer of his intention to do so, so terminates his employment without the previous consent of the Commissioner of Police, or the District Magistrate, or the Additional District Magistrate.

(4)

If the person contravening any of the provisions of this section is a company or other body corporate, every director, manager, secretary or other officer or agent thereof shall, unless he proves that the contravention took place without his knowledge or that he exercised all due diligence to prevent such contravention, be deemed to be guilty of such contravention.

(5)

Where any person is prosecuted under clause (i) (b) or clause (ii) of subsection (3), the burden of proving that he had a justifiable excuse shall be on him.

6.

Imposition of collective fine

(1)

If the Provincial Government is satisfied that the inhabitants of any area are concerned in the commission or abetment of offences affecting the public safety or the maintenance of public order, or the maintenance of supplies or services essential to the life of the community or are harbouring persons concerned in the commission of such offences, or are failing to render all the assistance in their power to discover or apprehend the offender or offenders, or are suppressing material evidence of the commission of such offences, the Provincial Government may, by notification in the Official Gazette, impose a collective fine on the inhabitants of that area.

(2)

Any officer empowered in this behalf by the Provincial Government by general or special order may exercise the power conferred by sub-section (1) on the Provincial Government.

(3)

The Provincial Government may make rules prescribing the manner in which an order made by an officer empowered under sub-section (2) shall be published.

(4)

The Provincial Government or any officer empowered under sub-section (2) may exempt any person or class or section of such inhabitants from liability to pay any portion of any fine imposed under this section.

(5)

The officer empowered under sub-section (2), or if there is no such officer, the Commissioner of Police, or the District

Magistrate, or the Additional District Magistrate, as the case may be, shall, after such enquiry as he may deem necessary, apportion such fine in such manner as is deemed proper among the inhabitants who are liable collectively to pay it.

(6)

In any such apportionment the officer empowered under sub-section (2) or the Commissioner of Police or the District Magistrate or the Additional District Magistrate may fix the fine to be paid by a Hindu undivided family.

(7)

The fine payable by any person (including a Hindu undivided family) may be recovered?

(a)

in the manner provided by the Code for the recovery of fines imposed by a Court, as if such fine were a fine imposed by a Court:

Provided that the Provincial Government may, in lieu of the rules referred to in sub-section (2) of section 386 of the Code, make rules under this Act regulating the manner in which warrants, under clause (a) of sub-section (1) of the said section 386 are to be executed for recovering the fine imposed Under this section, and for the summary determination of any claims made by any person other than the person liable to pay the fine in respect of any property attached in execution of the warrant; or

(b)

as arrears of land revenue.

[9][(8) The Provincial Government or the officer empowered under subsection (2) or if there is no such officer, the Commissioner of Police, the District Magistrate or the Additional District Magistrate, as the case may be may after making such enquiry as may be deemed necessary, refund either wholly or in part any fine paid by, or recovered from, any person under this section.]

7.

Control of camps, parades, etc.

(1)

The Provincial Government may, by general or special order, prohibit or restrict in any area any exercise, movement, evolution or drill of a military nature specified in the order.

(2)

With a view to securing that no unauthorized exercise, movement, evolution or drill of a military nature is performed at any place, the Provincial Government may, by general or special order, prohibit, restrict or impose conditions on the holding of, or taking part in, any camp, parade, meeting, assembly or procession, by any class of persons or organisations specified in the order.

(3)

If any person contravenes any order made under this section, he shall, on conviction, be punishable with imprisonment for a term which may extend to one year or with fine or with both

8.

Banning use of certain uniforms, etc.

(1)

If the Provincial Government is satisfied that the wearing in public of any dress or article of apparel resembling any uniform or part of a uniform required to be worn by a member of His Majesty's forces or by a member of any police force or of any force constituted under any law for the time being in force would be likely to prejudice the public safety, or the maintenance of public order, the Provincial Government may, by general or special order, prohibit or restrict the wearing, or display in public, of any such dress or article of apparel.

(2)

For the purposes of this section, a dress or an article of apparel shall be deemed to be worn or displayed in public if it is worn or displayed in any place to which the public have access.

(3)

If any person contravenes any order made under this section, he shall, on conviction, be punishable with imprisonment for a term which may extend to three years or with fine or with both.

9.

Punishment of whipping for certain offences

Whoever contravenes the provisions of any order lawfully promulgated under clause (a) of sub-section (2) of section 23 of the City of Bombay Police Act, 1902 (Bom. IV of 1902), prohibiting the carrying of swords, spears, bludgeons, guns, knives, sticks or lathis, or any other weapon capable of being used as a weapon of offence, or of any corrosive substance or any explosive or disobeys any order lawfully made under section 42 of the Bombay District Police Act, 1890 (Bom. IV of 1890), prohibiting the carrying of arms, cudgels or other weapons or of corrosive substances or explosives may be punished with whipping in addition to any other punishment to which he may for such offence be liable under the said Acts.

9. A. Control of publications, etc.

[10]IV-A. Control of Publications, etc.

11

If the Provincial Government is satisfied that such action is necessary for the purpose of preventing any activity prejudicial to the public safety, the maintenance of public order or the tranquillity of the Province or any part thereof, the Provincial Government may,--

(a)

by order in writing prohibit either absolutely or for a specified period the bringing into, or sale or distribution or circulation within, the Province of any newspaper, periodical, book or document specified in the order;

(b)

by an order in writing addressed to any printer, publisher or editor or generally to all printers, publishers or editors or to such class of printers, publishers or editors as may be specified therein-

(i)

prohibit either absolutely or for a specified period the printing or publication of any matter relating to a particular subject or class of subjects in any particular issue or issues of a newspaper or periodical or in any book or in any other document whatsoever;

(ii)

require that any matter relating to or arising out of any matter published in any previous issue of any newspaper or periodical be published in any particular issue of such newspaper or periodical in such manner as may be specified in the order;

(iii)

require that any matter relating to a particular subject or class of subjects shall be submitted before publication for scrutiny to an officer specified in the order;

(iv)

prohibit either absolutely or for a specified period the publication of any newspaper, periodical, book or any other document whatsoever or the use of any press.

(2)

The officer referred to in sub-clause (iii) of clause (b) of sub-section (1) may, after scrutiny of the matter, issue a direction either prohibiting its publication or permitting its publication with such modifications as he may deem necessary.

(3)

If any person contravenes any order or direction made under this section, he shall, on conviction, be punishable with imprisonment for a term which may extend to one year or with fine or with both.

(4)

Where it appears to the Provincial Government that an order or direction made under this section is contravened, the Provincial Government may, without prejudice to the penalty prescribed in sub-section (3), direct that any copy where-ever found of the newspaper or periodical or any issue thereof, or book or other document, in respect of which the order or direction appears to have been contravened or any printing press or other instrument or apparatus used in the printing or production of any such newspaper, periodical, book or document shall be seized and detained.

Section 9B - Control of commodities, etc.

[12]IV-B. Control of Commodities, etc.

13

If, in the opinion of the Provincial Government, it is essential for the purposes of public safety, the maintenance of public order or the tranquility of the Province or any part thereof, to restrict the removal of any commodity, article or thing from

the Province or such part, the Provincial Government may, by a general or special order, direct that no person shall remove such commodity, article or thing from the Province or such part without the permission in writing in Greater Bombay of the Commissioner of Police for Greater Bombay and elsewhere of the District Magistrate.

(2)

If any person contravenes any order made under sub-section (1), he shall, on conviction, be punishable with imprisonment for a term which may extend to one year or with fine or with both.]

10.

Special Courts

The Provincial Government may by notification in the Official Gazette constitute Special Courts of criminal jurisdiction for such area as may be specified in the notification.

11.

Special Judges

The Provincial Government may appoint a Special Judge to preside over a Special Court constituted under section 10 for Greater Bombay any person who is a Judge of the High Court and for any other area any person who has been a Sessions Judge for a period of not less than two years under the Code.

[14]Explanation.--For the removal of doubt, it is hereby declared that in this section the expression 'Sessions Judge' includes and shall always be deemed to have included 'Additional Sessions Judge'.]

12.

Jurisdiction of Special Judges

A Special Judge shall try such offences or class of offences or such cases or class of cases as the Provincial Government may, by general or special order in writing, direct.

13.

Procedure of Special Judges

(1)

A Special Judge may take cognizance of offences without the accused being committed to his Court for trial.

(2)

A Special Judge shall ordinarily record a memorandum only of the substance of the evidence of each witness examined, may refuse to summon any witness if satisfied after examination of the accused that the evidence of such witness will not be material and shall not be bound to adjourn any trial for any purpose unless such adjournment is, in his opinion, necessary in the interests of justice.

(2A)

A Special Judge trying an offence under this Act may, with a view to obtaining the evidence of any person supposed to have been directly or indirectly concerned in, or privy to, the offence, tender a pardon to such person on condition of his making a full and true disclosure of the whole circumstances within his knowledge relative to the offence and to every other person concerned, whether as principal or abettor, in the commission thereof. Any pardon so tendered shall, for the purposes of sections 339 and 339A of the Code, be deemed to have been tendered under section 338 of the Code.

(3)

In matters not coming within the scope of sub-sections (1) and (2), the provisions of the Code, in so far as they are not inconsistent with the provisions of sections 10 to 20, shall apply to the proceedings of a Special Judge; and for the purposes of the said provisions, the Court of the Special Judge shall be deemed to be a Court of Session.

14.

Evidence on commission

If a person whose evidence is considered essential by a Special Judge is in his opinion, not in a position to attend the Court of the Special Judge to give evidence, the Special Judge may in his discretion direct that his evidence may be recorded on commission by a person specially deputed for the purpose.

15.

Enhanced punishment for certain offences

Notwithstanding anything contained in the Indian Penal Code, whoever commits an offence of attempt to murder may, in lieu of any punishment to which he is liable under the said Indian Penal Code, be punishable with death; and whoever commits an offence of voluntarily causing hurt by stabbing may, in lieu of any punishment to which he is liable under the said Indian Penal Code (XLV of 1860), be punishable with death or transportation for life.

16.

Sentences by Special Judges

A Special Judge may pass any sentence authorized by law.

17.

Special rule of procedure

Notwithstanding anything contained in section 386 of the Code, where any offender has been sentenced by a Special Judge to pay a fine, it may be recovered by the issue of a warrant for the levy of the amount by attachment and sale of any property moveable or immoveable of the offender.

18.

Appeal, revision and confirmation

Notwithstanding the provisions of the Code, or of any other law for the time being in force, or of anything having the force of law by whatsoever authority made or done?

(1)

any person convicted on a trial held by a Special Judge may appeal to the High Court within a period of fifteen days from the date of sentence;

(2)

the High Court may call for the record of the proceedings of any case tried by a Special Judge and may in respect of such case exercise any of the powers conferred on a court of appeal by sections 423, 426, 427 and 428 of the Code; and

(3)

no court shall have jurisdiction to transfer any case from any Special Judge or to make any order under section 491 of the Code in respect of any person triable by a Special Judge or, save as herein otherwise provided, have jurisdiction of any kind in respect of proceedings of any Special Judge.

19.

Application of ordinary law

The provisions of the Code and of any other law for the time being in force, in so far as they may be applicable and in so far as they are not inconsistent with the provisions of sections 10 to 20 shall apply to all matters connected with, arising from, or consequent upon, a trial by a Special Judge appointed under section 11.

20.

Trials before Special Judge not to be by Jury or with Assessors

Notwithstanding anything contained in the Code, the trial of offences before a Special Judge shall not be by Jury or with the aid of Assessors.

21.

Delegation of powers and duties of Provincial Government

The Provincial Government may by order direct that any power or duty, which is conferred or imposed on the Provincial Government, shall in such circumstances and under such conditions, if any, as may be specified in the order, be exercised or discharged by any officer or authority subordinate to it [15][not being in the opinion of the Provincial Government below the rank of a Deputy Commissioner of Police or a District Magistrate.]

22.

Power to arrest without warrant

Any police officer may arrest without warrant any person who is reasonably suspected of having committed an offence punishable under this Act.

23.

Repeal of Bom. Ordinances II of 1946 and I of 1947

(1)

The Bombay Security Measures Ordinance, 1946, and the Criminal Law (Bombay Amendment) Ordinance, 1947, are repealed.

(2)

Every notification issued or appointment, rule or order made under the Bombay Security Measures Ordinance, 1946, and the Criminal Law (Bombay Amendment) Ordinance, 1947, which was in force immediately before the commencement of this Act shall, so far as it could validly have been issued or made under this Act, continue in force

and be deemed to have been issued or made under this Act until it is superseded or modified by a competent authority under this Act and any proceeding under the said Ordinances pending on the date of the coming into operation of this Act may be continued as if it is a proceeding under this Act.

24.

Indemnity

No suit, prosecution or other legal proceedings whatsoever shall lie against any person for or on account of or in respect of any sentence passed or any act ordered or done by him in good faith whether in exercise of any jurisdiction or power conferred or purporting to have been conferred on him by or under this Act or in carrying out any sentence passed by a Special Judge in exercise of any jurisdiction as aforesaid.

25.

Rules

The Provincial Government may by notification in the Official Gazette and subject to the condition of previous publication make rules to carry out the purposes of this Act.

26.

Amendment of section 9 of Act IV of 1871

For the proviso to sub-section (1) of section 9 of the Coroners' Act, 1871 (IV of 1871), in its application to the Province of Bombay, the following shall be substituted, namely:--

"Provided that such inquest shall not be held in the case of death arising out of an offence triable under the Bombay Public Security Measures Act 1947 (Bom. VI of 1947)."

27.

Insertion of new section 16A in Act XIV of 1908

After section 16 of the Indian Criminal Law Amendment Act, 1908 (XIV of 1908), in its application to the Province of Bombay the following new section shall be inserted, namely:--

"16A. Additional power declare association unlawful.

If the Provincial Government is of opinion that any association is organized or equipped for the purpose of enabling the members of the association to be employed, or is organized or equipped in such manner as to arouse reasonable apprehension that the members of the association may be employed, in usurping the functions of His Majesty's forces or of any police force or of any force constituted under any law for the time being in force or for the use or display of physical force in furtherance of the common object of the association, the Provincial Government may by notification in the Official Gazette declare such association to be unlawful."

28.

Amendment of section 42 of Bom. IV of 1890 and of section 23 Bom. IV of 1902

(1)

In sub-section (1) of section 42 of the Bombay District Police Act, 1890 (Bom. IV of 1890), after the word "weapons" the words "or of corrosive substances or of explosives" shall be inserted.

(2)

In clause (a) of sub-section (2) of section 23 of the City of Bombay Police Act, 1902 (Bom. IV of 1902), after paragraph (ii) the following shall be inserted, namely:--

" or

(iii)

any corrosive substance; or

(iv)

any explosive;"

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